

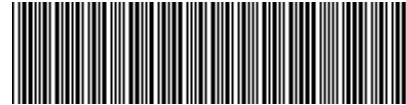
May 13, 2026

U.S. Department of Homeland Security
U.S. Citizenship and Immigration Services
Texas Service Center
6046 N Belt Line Rd STE 140
Irving, TX 75038-0014

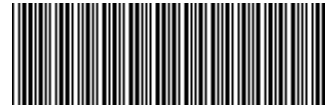
MARTHA KAKOOZA
c/o MARTHA KAKOOZA
29 LINDEN TERRACE
TOWSON, MD 21286



**U.S. Citizenship
and Immigration
Services**



IOE0935844371



A140-055-895

RE: MARTHA KAKOOZA
I-140, Immigrant Petition for Alien Worker

PREMIUM PROCESSING

Your Form I-140, Immigrant Petition for Alien Worker, has been denied for the following reason(s):

See Attachment

If you disagree with this decision, you may appeal to the Administrative Appeals Office (AAO) by filing a Notice of Appeal or Motion (Form I-290B) within 30 calendar days from the date of this letter, 33 calendar days if this letter is mailed.

Alternatively, you may use Form I-290B to submit a motion to reopen or reconsider. For the latest information on filing location, fee, and other requirements, please review the Form I-290B instructions at <http://www.uscis.gov/forms>, call our USCIS Contact Center at 1-800-375-5283, or visit your local USCIS office. If USCIS does not receive a properly filed appeal or motion, this decision will become final.

This decision does not prevent you from filing any petition or application in the future.

Sincerely,

Carrie M. Selby
Associate Director, Service Center Operations

ATTACHMENT

Reference is made to Immigrant Petition for Alien Worker (Form I-140) filed by MARTHA KAKOOZA (the petitioner and beneficiary) on March 2, 2026. The petitioner seeks to classify herself as an alien with extraordinary ability in accordance with Section 203(b)(1)(A) of the Immigration and Nationality Act (Section 203(b)(1)(A) of the INA) as a Ph.D. student in the field of higher education research at Morgan State University. After a review of the petition and all of the supporting evidence, it is the decision of U.S. Citizenship and Immigration Services (USCIS) to deny Form I-140.

Section 203(b)(1)(A) of the INA defines an “alien with extraordinary ability” in the following terms:

An alien is described in this subparagraph if-

- (i) The alien has extraordinary ability in the sciences, arts, education, business, or athletics which has been demonstrated by sustained national or international acclaim and whose achievements have been recognized in the field through extensive documentation,
- (ii) The alien seeks to enter the United States to continue work in the area of extraordinary ability, and
- (iii) The alien’s entry into the United States will substantially benefit prospectively the United States.

8 Code of Federal Regulations (8 C.F.R.) Section 204.5(h)(2) defines “extraordinary ability” as a level of expertise indicating that the individual is one of that small percentage who has risen to the very top of the field of endeavor.

USCIS and the legacy Immigration and Naturalization Service (INS) have consistently recognized that Congress intended to set a very high standard for individuals seeking immigrant visas in the extraordinary ability classification. See 56 Federal Register 60897, 69898-99 (Nov. 29, 1991).

8 C.F.R. Section 204.5(h)(3) indicates that an individual beneficiary can establish sustained national or international acclaim through evidence of a one-time achievement (that is, a major, internationally recognized award). Barring the individual’s receipt of such an award, the regulation outlines ten criteria, at least three of which must be satisfied for an individual to establish the sustained acclaim necessary to qualify as an individual of extraordinary ability. The criteria are outlined below.

- (i) Documentation of the alien’s receipt of lesser nationally or internationally recognized prizes or awards for excellence in the field of endeavor;
- (ii) Documentation of the alien’s membership in associations in the field for which classification is sought, which require outstanding achievements of their members, as judged by recognized national or international experts in their disciplines or fields;
- (iii) Published material about the alien in professional or major trade publications or other major media, relating to the alien’s work in the field for which classification is sought. Such evidence shall include the title, date, and author of the material, and any necessary translation;
- (iv) Evidence of the alien’s participation, either individually or on a panel, as a judge of the work of others in the same or an allied field of specialization for which classification is sought;
- (v) Evidence of the alien’s original scientific, scholarly, artistic, athletic, or business-related contributions of major significance in the field;
- (vi) Evidence of the alien’s authorship of scholarly articles in the field, in professional or major trade publications or other major media;
- (vii) Evidence of the display of the alien’s work in the field at artistic exhibitions or

showcases;

(viii) Evidence that the alien has performed in a leading or critical role for organizations or establishments that have a distinguished reputation;

(ix) Evidence that the alien has commanded a high salary or other significantly high remuneration for services, in relation to others in the field; or

(x) Evidence of the alien's commercial successes in the performing arts, as shown by box office receipts or record, cassette, compact disk, or video sales.

Additionally, 8 CFR 204.5(h)(4) states, "If the above standards do not readily apply to the beneficiary's occupation, the petitioner may submit comparable evidence to establish the beneficiary's eligibility."

In reviewing this petition, USCIS will first consider the evidence in relation to the plain language of the above criteria. If the individual has received a one-time achievement (a major internationally recognized award) or meets at least three criteria, USCIS will then consider the evidence in the context of a final merits determination. However, the fact that an individual meets the minimum requirement of providing required initial evidence does not, in itself, establish that the individual is one of the small percentage who have risen to the very top of the field of endeavor, and that the beneficiary has sustained national or international acclaim in the field. *See Kazarian v. USCIS*, 596 F.3d 1115 (9th Cir. 2010).

On March 19, 2026, USCIS issued a Request for Evidence (RFE) seeking further documentation which demonstrates that the petitioner qualifies as an alien of extraordinary ability. The petitioner provided a timely response, and the evidence has been added to the record.

I. Analysis of Criteria

The evidence does not show that the beneficiary has received a major, internationally recognized prize or award. As a result, the evidence must demonstrate that the beneficiary has fulfilled at least three of the ten criteria listed in the regulations. USCIS will analyze the evidence that was submitted under each criterion below. (Note: The petitioner does not claim that the beneficiary meets the regulatory criteria not discussed in this decision.)

Evidence of the beneficiary's receipt of lesser nationally or internationally recognized prizes or awards for excellence in the field of endeavor

The petitioner states that she won the following:

- Donald H. Wulff Fellowship with the Professional and Organizational Development (POD) Network in Higher Education;
- American Association of Colleges and Universities (AAC&U) Future Leaders Society Award; and
- Inclusive Graduate Education Network (IGEN) – Research Accelerator Award Winner.

The plain language of this criterion requires evidence (1) of the beneficiary's receipt of a prize or award, (2) that the prize or award is in beneficiary's field, (3) that the prize or award is recognized nationally or internationally, and (4) that the award or prize is for excellence in the field of endeavor. The petitioner must satisfy all of these elements to meet the plain language requirements of this criterion.

The petitioner initially submitted letters from individuals of these organizations attesting to the

petitioner's receipt of the awards and a POD presentation which lists her as a recipient of the fellowship, but the petitioner was informed in the RFE that she did not submit documentary evidence of her receipt of the awards. The petitioner submitted material about the awarding organizations, but the petitioner did not submit documentary evidence of the criteria used to grant her awards to demonstrate that excellence in the field was the basis of winning the awards. The petitioner claims that her awards are nationally and internationally recognized based on the recognition of the awarding organizations, but awards granted by an organization do not establish that any awards they grant are inherently recognized at a national or international level, and the evidence also failed to demonstrate that her awards are nationally or internationally recognized. The petitioner was requested to submit additional evidence which satisfies the plain language of this criterion.

The petitioner responded with additional material about these organizations, but the evidence fails to demonstrate that any of these programs satisfy this criterion. The Donald H. Wulff Fellowship indicates that it is "designed to increase and support sustained participation of individuals from historically underrepresented groups in the field" rather than to honor national or international excellence across the field, and appears to operate as a travel grant to attend a conference. The AAC&U Future Leaders Society Award appears to be limited to students and graduates, and it appears to be designed to honor potential excellence rather than past excellence. The IGEN Research Accelerator Award is a research grant designed to fund prospective work, and the applicant pool is also restricted by demographic scope rather than an open, field-wide national championship. The evidence indicates that these programs are for developmental purposes, and they are recognized primarily by their awarding organizations. The evidence fails to demonstrate that any of these honors are nationally or internationally recognized prizes or awards that were granted for excellence in the field.

As such, the submitted evidence does not meet this criterion.

Evidence of the beneficiary's participation, either individually or on a panel, as a judge of the work of others in the same or allied field

The petitioner submitted evidence of her participation as a peer reviewer of the work of others in the field. As such, the submitted evidence meets this criterion.

Evidence of the beneficiary's authorship of scholarly articles in the field, in professional or major trade publications or other major media

The petitioner submitted evidence of her scholarly articles that were published in professional publications. As such, the submitted evidence meets this criterion.

Comparable evidence

The petitioner states that the criterion, evidence of the display of the beneficiary's work in the field at artistic exhibitions or showcases, does not apply to her occupation, but it is comparable evidence which demonstrates that she publicly displayed her scientific work at professional venues as traditional artistic exhibitions are generally not a medium through which professional recognition is achieved.

8 C.F.R. Section 204.5(h)(4) states that if the above standards do not readily apply to the beneficiary's occupation, the petitioner may submit comparable evidence to establish the beneficiary's eligibility. A petitioner should demonstrate that the standards described in the regulations do not readily apply to his or her occupation as well as that the evidence they have provided is "truly comparable" to that required under 8 C.F.R. Section 204.5(h)(3). The petitioner submitted evidence of her conference

presentations, but she has not demonstrated that presentations at scientific conferences and seminars are truly comparable to the displayed work criterion. The evidence indicates that the petitioner's scientific presentations are based on authored scholarly articles and are therefore relevant for consideration as comparable evidence under the scholarly articles criterion, a criterion the petitioner has already satisfied. The petitioner's inability to meet a criterion that does appear to readily apply to her occupation would tend to point toward ineligibility, rather than special consideration of comparable evidence. The petitioner therefore has not established that she qualifies for this criterion through the submission of comparable evidence.

In response to the RFE, the petitioner states that the review process for being accepted to present her presentations at the venues she attended is equivalent to juried art exhibitions which involve selective entry, expert evaluation, and public display before professional audiences. However, this process appears to be very similar to the process of submitting journal or conference articles which involve being selected by the journal or conference, undergoing peer review, and then being published for learned persons. The petitioner states that her public displays are invited engagements with no corresponding published articles, and this makes her displayed work at public exhibitions distinct from written scholarly articles. However, the petitioner has not demonstrated that her field or occupation is prohibited from publishing articles, or that it is otherwise inapplicable.

The USCIS Policy Manual provides an example of what could be considered as comparable evidence and states, "For instance, if the publication of scholarly articles is not readily applicable to a person whose occupation is in an industry rather than academia, a petitioner might demonstrate that the person's presentation of work at a major trade show is of comparable significance to that criterion." This example supports the analysis in the RFE that the petitioner's scientific presentations are more relevant for consideration as comparable evidence under the scholarly articles criterion. The petitioner's inability to meet a criterion that does readily apply to her occupation would tend to point toward ineligibility, rather than special consideration of comparable evidence. As such, this evidence will not be considered in the context of "comparable" evidence.

II. Final Merits Analysis

Upon review, USCIS finds that the petitioner has not received a one-time achievement (a major internationally recognized award) or does not meet at least three of the ten criteria. Since the petitioner has not established by a preponderance of the evidence that she meets at least three of the antecedent evidentiary prongs, USCIS will not conduct a final merits determination to determine whether the petitioner has reached a level of expertise indicating that she is one of that small percentage who have risen to the top of the field of endeavor, and whether she has sustained acclaim.

Therefore, USCIS does not find the petitioner to be an individual of extraordinary ability.

Pursuant to Section 291 of the INA, whenever any person makes an application for an immigration benefit, they shall bear the burden of proof to establish eligibility. Accordingly, the petitioner must prove by a preponderance of the evidence, in other words, that it is more likely than not, that the petitioner is fully qualified for the benefit sought. *See Matter of E-M-*, 20 I&N Dec. 77 (Comm'r. 1989). After a careful review and analysis of all evidence within the record, USCIS finds that the petitioner has not established eligibility for the benefit sought. As a result, USCIS is denying this Form I-140 petition.

NOTE: The Small Business Regulatory Enforcement and Fairness Act established the Office of the National Ombudsman (ONO) at the Small Business Administration. The ONO assists small businesses with issues related to federal regulations. If you are a small business with a comment or

complaint about regulatory enforcement, you may contact the ONO at www.sba.gov/ombudsman or phone 202-205-2417 or fax 202-481-5719.